

Bihar Delegated Legislation Provisions Act, 2013

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State of Bihar - Act

Bihar Delegated Legislation Provisions Act, 2013

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Bihar Delegated Legislation Provisions Act, 2013

Rule BIHAR-DELEGATED-LEGISLATION-PROVISIONS-ACT-2013 of 2013

Published on 3 January 2014

Commenced on 3 January 2014

[This is the version of this document from 3 January 2014.]

[Note: The original publication document is not available and this content could not be verified.]

Bihar Delegated Legislation Provisions Act, 2013

[Bihar Act 1, 2014]

Last Updated 22nd November, 2019

[Dated 03.01.2014]

An Act to amend certain Acts to provide for laying of rules and other delegated legislations, before the Houses of the State Legislature.

Be it enacted by the Legislature of the State of Bihar in the Sixty-fourth year of the Republic of India as follows :-

1.

Short title, extent and commencement.

(1)

This Act may be called the Bihar Delegated Legislation Provisions Act, 2013.

(2)

It shall extend to the whole of the State of Bihar.

(3)

It shall come into force at once.

2.

Amendment of certain enactments.

- The enactments specified in the schedule of this Act are hereby amended to the extent and in the manner mentioned in the third column thereof.

The Schedule

(See Section 2)

Sl.No. Short title Amendment

1. Bihar Co-operative Society Act 1935 (Bihar & Orissa Act 6, 1935). - The following new sub-section (5) shall be added after sub section(4) of section 66 of the said act 1935 . -

"(5) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule."

2. Bihar Home Guard Act, 1947 (Bihar Act 20, 1947). - The following new sub-section (3) shall be added after sub section(2) of section 13 of the said Act 1947, -

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule."

3.

The Bihar Contingency Fund Act, 1950 (Bihar Act 19, 1950). - The existing provision under section 6 of the said Act, 1950 shall be numbered as sub-section (1) and thereafter the following sub-section (2) shall be added :-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

4.

The Bihar Goshala Act, 1950 (Bihar Act 28, 1950). - The following new sub-section (4) shall be added after sub-section(3) of section 18 of the said Act, 1950:-

"(4) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

5.

The Bihar School Examination Board Act, 1952 (Bihar Act 7, 1952). - The following new sub section (3) shall be added

after sub- section(2) of section 16 of the said Act, 1952 :-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so , however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

6.

The Bihar Development of Homeopathic System of Medicine Act, 1953 (Bihar Act 24, 1953). - The following new sub-section (3) shall be added after sub- section(2) of section 53 of the said Act, 1953 :-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

7.

The Bihar Government Premises (Rent Recovery & Eviction) Act, 1956 (Bihar Act 20, 1956). - The following new sub-section (3) shall be added after sub- section(2) of section section 14 of the said Act, 1956 :-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule."

8.

The Bihar State Universities Act, 1976 (Bihar Act 23, 1976). - The following new subsection (4) shall be added after sub-section(3) of section 40 of the said Act, 1976:-

"(4) Every Statue, Ordinance, Regulation or Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinance, regulation or rule or both Houses agree that the Statue, Ordinance, Regulation or rule should not be made, the Statute, Ordinance, regulation or rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statue, Ordinance, Regulation or rule".

9.

The Patna University Act, 1976 (Bihar Act 24, 1976). - The following new sub-section (4) shall be added after sub-section(3) of section 40 of the said Act, 1976:-

"(4) Every Statue, Ordinance, Regulation or Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinance, regulation or rule or both Houses agree that the Statue, Ordinance, Regulation or rule should not be made, the Statute, Ordinance, regulation or rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statue, Ordinance, Regulation or rule".

10.

Bihar Indig. Medi. Edu. Ins. (Regulation & Control) Act, 1982 (Bihar Act 20, 1982). - The existing provision under Section 16 of said Act, 1982 shall be numbered as sub-section(1) and thereafter the following sub-section(2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive session aforesaid both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule."

11.

Bihar State Engineering & Pharmacy Educational Institution (Regulation and Control) Act, 1982 (Bihar Act 63, 1982). - The existing provision under Section 16 of said Act, 1982 shall be numbered as sub-section(1) and thereafter the following sub-section(2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

12.

Bihar Agricultural University Act, 1987 (Bihar Act 8, 1988). - (1) The following new the section (4) shall be added after sub-section(3) of section 36 of the said Act, 1987:-

"(4) Every Statute made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute or both Houses agree that the Statute should not be made, the Statute shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute".

(2)

The following new sub-section (5) shall be added after sub-section(4) of section 37 of the said Act, 1987: -

"(5) Every Regulation made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the regulation or both Houses agree that the regulation should not be made, the regulation shall thereafter have effect only in such modified form or be of no effect as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that regulation".

13.

The Nalanda Open University Act, 1995 (Bihar Act 11, 1995). - The following new sub-section (4) shall be added after sub- section(3) of section 33 of the said Act, 1995:-

"(4) Every Statue, Ordinance, Regulation or Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statue, Ordinance, Regulation or rule or both Houses agree that the Statute, Ordinance, regulation or rule should not be made the statute, Ordinance, regulation or rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statue, Ordinance, Regulation or rule".

14.

The Bihar Combined Entrance Competitive Examination Act, 1995 (Bihar Act 15, 1995). - The existing provision under Section 18 of said Act, 1995 shall be numbered as subsection(1) and thereafter the following sub-section(2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect, as the case may be; so, however, that an such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

15.

Bihar Self Supporting Co-operative Society Act, 1996 (Bihar Act 2, 1997). - The following new sub-section (4) shall be added after sub- section(3) of section 51 of the said Act, 1997:-

"(4) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each Houses of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

16.

The Bihar Irrigation Act, 1997 (Bihar Act 11, 1998) . - The following new sub-section (3) shall be added after sub-section(2) of section 115 of the said Act, 1997 :-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House, of the State Legislature, while it is In session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

17.

The Bihar Staff Selection Commission Act, 2002 (Bihar Act 7, 2002). - The following new sub-section (3) shall be added after sub- section(2) of section 12 of the said Act, 2002:-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under the rule".

18.

The Bihar Fish Jalkar Management Act, 2006 (Bihar Act 15, 2006). - The existing provision under Section 15 of said Act, 2006 shall be numbered as sub-section(1) and thereafter the following sub-section(2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

19.

Bihar Police Act, 2007 (Bihar Act 7, 2007). - The existing provision under Section 55 of the said Act, 2007 shall be

numbered as sub-section(1) and thereafter the following sub-section(2) shall be added: -

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule."

20.

The Bihar Clinical Establishments (Control and Regulation) Act, 2007 (Bihar Act 14, 2007). - The existing provision under Section 21 of said Act, 2007 shall be numbered as subsection(1) and thereafter the following sub-section(2) shall be added:-

"(2 Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule ".

21.

Bihar Secretariat Service, Act, 2007 (Bihar Act 3, 2008). - The following new subsection (3) shall be added after sub-section(2) of section 19 of the said Act, 2007:-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under the rule".

22.

The Bihar Coaching Institute (Control & Regulation) Act, 2010 (Bihar Act 17, 2010). - The existing provision under Section 9 of said Act, 2010 shall be numbered as subsection(1) and thereafter the following sub-section(2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

23.

Bihar Agricultural University Act, 2010 (Bihar Act 19, 2010). - (1) The following new sub-section (4) shall be added after sub-section(3) of section 36 of the said Act, 2010 :-

"(4) Every Statute made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute or both Houses agree that the Statute should not be made, the Statute shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute".

(2)

The following new sub-section (5) shall be added after sub-section(4) of section 37 of the said Act, 2010 :-

"(5) Every Regulation made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the regulation or both Houses agree that the regulation should not be made, the regulation shall thereafter have effect only in such modified form or be of no effect as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that regulation".

24.

Bihar Medical Service Institution and Person Protection Act, 2011 (Bihar Act 18, 2011). - The existing provision under Section 9 of said Act, 2011 shall be numbered as subsection (1) and thereafter the following sub-section (2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule ".

25.

The Bihar Privileged Persons Homestead Tenancy Act, 1947 (Bihar Act 4, 1948). - The following new sub-section (3) shall be added after sub- section(2) of section 20 of the said Act, 1947:-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under the rule".

26.

The Bihar Bhoodan Yagna Act, 1954 (Bihar Act 22, 1954). - The following new subsection (3) shall be added after sub-section(2) of section 25 of the said Act, 1954:-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under the rule".

27.

The Bihar Land Reforms Act, 1950 (Bihar Act 30, 1950). - The following new subsection (3) shall be added after sub-section(2) of section 43 of the said Act, 1950:-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under the rule".

28.

The Bihar State Mela Authority Act, 2008 (Bihar Act 20, 2008). - The existing provision under Section 26 of said Act,

2008 shall be numbered as sub-section(1) and thereafter the following sub-section(2) shall be added:-

"(2) Every Rule and Regulation made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule and regulation or both Houses agree that the rule should not be made, the rule and regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule ".

29.

The Bihar Land Disputes Resolution Act, 2009 (Bihar Act 4, 2010). - The following new sub-section (3) shall be added after sub- section(2) of section 17 of the said Act, 2009:-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under the rule".

30.

The Bihar Land Tribunal Act, 2009 (Bihar Act 9, 2009). - The existing provision under Section 21 of said Act, 2009 shall be numbered as sub-section(1) and thereafter the following sub-section(2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule ".

31.

The Bihar Agriculture Land (Conversion for Non-Agriculture Purposes) Act, 2010 (Bihar Act 11, 2010). - The existing provision under Section 15 of said Act, 1982 shall be numbered as sub-section(1) and thereafter the following sub-section(2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule ".

32.

The Bihar Special Survey and Settlement Act, 2011 (Bihar Act 24, 2011). - The following new sub-section (3) shall be added after sub- section(2) of section 28 of the said Act, 2011:-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under the rule".

33.

Bihar Khadi & Village Industries Act, 1956 (Bihar Act 23, 1956). - The following new sub-section (3) shall be added after

sub- section(2) of the section 33 of the said 1956:-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under the rule".

34.

Bihar Research Society (Taking Over) Act, 2007 (Bihar Act 6, 2008). - The existing provision under section 8 of said Act, 2007 shall be numbered as sub-section(1) and thereafter the following new sub-section(2) shall be added:-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule ".

35.

Bihar Excise Act, 1915 (Bihar & Orissa Act no.-II of 1915). - The following new subsection (4) shall be added after sub-section(3) of section 89 of the said Act, 1915 :-

"(4) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule ".

36.

Bihar Molasses Act, 1947 (Bihar Act, 6, 1947). - The following new sub-section (3) shall be added after sub- section (2) in section 13, of the said Act, 1947 :-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule be without prejudice to the validity of anything previously done under that rule".

37.

The Bihar Entertainments Tax Act, 1948 (Bihar Act, 25, 1948). - The following new sub-section (5) shall be added after sub- section (4) of section 21, of the said Act 25 of 1948 :-

"(5) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule be without prejudice to the validity of anything previously done under that rule ".

38.

The Bihar Electricity duty Act, 1948 (Bihar Act, 36, 1948). - The following new subsection (4) shall be added after sub-section (3) of section 10, of the said Act 36 of 1948 :-

"(4) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule be without prejudice to the validity of anything previously done under that rule".

39.

Bihar Water Board Act, 1982 (Bihar Act 56, 1982). - The following new sub-section (4) shall be added after sub- section (3) of section 51 of the said Act 56 of 1982 :-

"4. Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule."

(2)

The existing provision under section 52 power to make to Bye-laws of the said Act, 1982 shall be numbered as section(1) and the following sub section(2) shall be added :-

"4. Every Byelaws made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Byelaws or both Houses agree that the Byelaws should not be made, the Byelaws shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Byelaws."

40.

Bihar Building (Lease, Rent and Eviction) control Act, 1982 (Bihar Act, 4, 1983). - The following new sub-section (3) shall be added after sub-section (2) of section 33 of the said Act 4 of 1983 :-

"(3) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

41.

The Bihar Apartment Ownership Act, 2006 (Bihar Act 28, 2006). - The existing provision under section 31 of the said Act 28 of 2006 shall be numbered as sub-section (1) thereof and after sub-section (1), the following new sub-section (2) shall be added, namely :-

"(2) Every Rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature, while it is in session, for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if , before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule".

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